

Superior Court of Washington, County of Saint Bartholomew

State of Washington, Plaintiff,

vs.

Alexandrina-Katharine Montgomery-Vandenberg-Ovelaran,

Defendant.

DOB

PCN:

SID:

No. 0123-45-2026-CR-900123.00-AB-CDE/2201

**Motion and Declaration for Order Vacating
Record of Felony Conviction**

(MTAF)

I. Motion

☒ **Defendant** ☐ **Prosecutor** asks the court for an order vacating the record of the defendant's conviction of a felony offense the defendant committed on or after July 1, 1984. This motion is based on RCW 9.94A.640, the case record and files, and the declaration of the defendant or prosecutor.

Dated: _____

Signature

WSBA No. _____

Alexandrina-Katharine Montgomery-Vandenberg-Ovelaran

Print Name

II. Declaration of Defendant

I, Alexandrina-Katharine Montgomery-Vandenberg-Ovelaran, declare as follows:

1. I am seeking to vacate the following convictions:

Count: 1 Offense (include degree): Theft in the Third Degree RCW 9A.56.050

Count: 2 Offense (include degree): Malicious Mischief in the Third Degree RCW 9A.48.090

Count: 3 Offense (include degree): Criminal Trespass in the Second Degree RCW 9A.52.080

Count: 4 Offense (include degree): Disorderly Conduct RCW 9A.84.030

2. **Prohibited Offenses**

I am **not** applying to vacate any of the following offenses:

- A class A felony;
- A violent offense as defined in RCW 9.94A.030;
- Driving under the influence (RCW 46.61.592);

- Physical control of vehicle while under the influence (RCW 46.61.504);
 - A crime against a person as defined in RCW 43.43.830; or
 - I am asking to vacate a violent offense or a crime against a person but it is one of the following crimes and it did **not** include a firearm, deadly weapon, or sexual motivation enhancement:
 - Assault in the second degree (RCW 9A.36.021)
 - Assault in the third degree (RCW 9A.36.031) when not committed against a law enforcement officer or peace officer
 - Robbery in the second degree (RCW 9A.56.210)
3. I ☒ was [] was not discharged under RCW 9.94A.637, for the offenses listed in section 1 (RCW 9.94A.640).
4. **Criminal Charges Pending**
- ☒ There are no criminal charges pending against me in any state court or federal court (RCW 9.94A.640(2)(a)).
- [] The only criminal charge pending against me in any court is for prostitution and I am applying as a victim of certain crimes.
5. **No New Convictions**
- [] I committed a class B felony and have not been convicted of any new crime in any state or federal court in the last 10 years. (RCW 9.94A.640(2)(c), .648).
- Or
- [] I committed a class C felony and have not been convicted of any new crime in any state or federal court in the last 5 years. (RCW 9.94A.640(2)(d), .648).
6. **Time Since Conviction or Release**
- [] **Class B Felony:** At least 10 years have passed since the later of my: a) release from community custody; b) release from full and partial confinement; or c) sentencing date (RCW 9.94A.640(2)(e)).
- Or
- [] **Class C Felony:** At least 5 years have passed since the later of my: a) release from community custody; b) release from full and partial confinement; or c) sentencing date (RCW 9.94A.640(2)(f)).
- Or
- [] **Victim of certain crimes.** I am trying to vacate an offense that is not the offense of promoting prostitution as described in RCW 9A.88.070 and 9A.88.080. I committed this offense because I am a victim of domestic violence, sex trafficking, prostitution, commercial sexual abuse of a minor, or sexual assault.
- I have paid my crime victim penalty assessment in full.
 - I have paid any restitution owed to a victim that is not an insurance provider in full.
 - The facts that show I am a victim of domestic violence, sex trafficking, prostitution, commercial sexual abuse of a minor, or sexual assault are:

7. Rehabilitation and Mitigation

☐ The following facts are evidence of my rehabilitation since my conviction: _____

☐ The following is mitigating evidence related to this case: _____

8. I served this *Motion and Declaration for Order Vacating Record of Felony Conviction* and the ☐ *Notice of Hearing* on the prosecuting attorney in the county I was convicted in on (date) _____.

I declare, under penalty of perjury under the laws of the State of Washington, that the foregoing is true and correct.

Signed on _____ (date) at _____, Washington.

Defendant

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran

Print Name

Address: 12345 Southwest Grandview Boulevard Northeast, Apartment 4321-B, Unincorporated Township of Long Hollow Crossing, WA 98101-9999

Email: jordan.reyes@example.com

Attach the following documents:

- **Copy of judgment and sentence**
- **Copy of certificate of discharge, or other document showing completion of all conditions of sentence as required under the statute**
- **Copy of current criminal history**

Superior Court of Washington, County of Saint Bartholomew

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No. 0123-45-2026-CR-900123.00-AB-CDE/2201

**Order on Motion to Vacate Record of
Felony Conviction**

☐ **Granted (ORVCJG)**

☐ **Denied (ORDYMT)**

Clerk's Action Required: 15

This matter comes before the court on Defendant's motion for an order vacating record of felony conviction pursuant to RCW 9.94A.640. The court heard argument of the parties and considered the case records and files, and the pleadings submitted on the matter.

The Court makes the following findings:

1. Notice ☐ was ☐ was not given to the appropriate parties and agencies.
2. On (date) 2020-06-15 Defendant was convicted of the following offense(s):
Count: 1 Offense (include degree): Theft in the Third Degree RCW 9A.56.050
Count: 2 Offense (include degree): Malicious Mischief in the Third Degree RCW 9A.48.090
Count: 3 Offense (include degree): Criminal Trespass in the Second Degree RCW 9A.52.080
Count: 4 Offense (include degree): Disorderly Conduct RCW 9A.84.030

3. Prohibited Offenses

The defendant was **not** convicted of one of the following offenses:

- A class A felony;
- A violent offense as defined in RCW 9.94A.030;
- Driving under the influence (RCW 46.61.592);
- Physical control of vehicle while under the influence (RCW 46.61.504);
- A crime against a person as defined in RCW 43.43.830; or
- The defendant did commit a violent offense or a crime against a person but it was one of the following crimes that did **not** include a firearm, deadly weapon, or sexual motivation enhancement:

- Assault in the second degree (RCW 9A.36.021)

- Assault in the third degree (RCW 9A.36.031) when not committed against a law enforcement officer or peace officer
- Robbery in the second degree (RCW 9A.56.210)

4. Defendant ☐ was ☐ was not discharged under RCW 9.94A.637, effective (date) _____ for the offenses listed in section 2.

5. Current Criminal Charges

☐ There are no criminal charges pending against the defendant in any court of this state or another state, or in any federal court (RCW 9.94A.640(2)(a)).

☐ The only criminal charge pending against the defendant is for prostitution.

6. Criminal History Check

☐ The defendant committed a class B felony and ☐ has ☐ has not been convicted of any new crime in this state, another state, or federal court in the last 10 years (RCW 9.94A.640(2)(c)).

☐ The defendant committed a class C felony and ☐ has ☐ has not been convicted of any new crime in this state, another state, or federal court in the last 5 years (RCW 9.94A.640(2)(d)).

The following records were used in the criminal history check:

☐ Washington State Crime Information Center (WACIC), RCW 43.43.500 et seq.;

☐ National Crime Information Center (NCIC), including the Interstate Identification Index (Triple I), 28 U.S.C. Section 534;

☐ Judicial Information System (JIS), RCW 2.68 et seq. and JISCR.

☐ Other: _____.

7. Time Since Conviction or Release

☐ The defendant was convicted of a class B felony and it has been at least 10 years since the later of the defendant's: a) release from community custody; b) release from full and partial confinement; or c) sentencing date (RCW 9.94A.640(2)(e)).

☐ The defendant was convicted of a class C felony and it has been at least 5 years since the later of the defendant's: a) release from community custody; b) release from full and partial confinement; or c) sentencing date (RCW 9.94A.640(2)(f)).

☐ The defendant is a victim of domestic violence, sex trafficking, prostitution, commercial sexual abuse of a minor, or sexual assault. The offense the defendant is trying to vacate is not the offense of promoting prostitution as described in RCW 9A.88.070 and 9A.88.080

8. Mitigation and Release

☐ The defendant's mitigating evidence or evidence of rehabilitation was

☐ persuasive ☐ not persuasive because _____

☐ The defendant presented no mitigating evidence or evidence of rehabilitation.

The Court Orders:

9. The motion for order vacating conviction records of the following offense is ☐ granted
☐ denied.

Count: 1 Offense (include degree): Theft in the Third Degree RCW 9A.56.050

Count: 2 Offense (include degree): Malicious Mischief in the Third Degree RCW 9A.48.090

Count: 3 Offense (include degree): Criminal Trespass in the Second Degree RCW 9A.52.080

Count: 4 Offense (include degree): Disorderly Conduct RCW 9A.84.030

If granted, the court further orders that:

10. ☐ The defendant's guilty plea for every offense listed in section 9 is withdrawn and a not guilty plea is entered.

Or

☐ The guilty verdict for every offense listed in section 9 is set aside.

11. The information or indictment for every offense listed in section 9 is dismissed.
12. The defendant shall be released from all penalties and disabilities resulting from every offense listed in section 9 and the conviction for those offense(s) shall not be included in the defendant's criminal history for purposes of determining a sentence in any subsequent conviction. However, the conviction may be used in a later criminal prosecution. A conviction vacated on or after July 28, 2019, qualifies as a prior conviction for the purpose of charging a present recidivist offense occurring on or after that date, and may be used to establish an ongoing pattern of abuse for purposes of RCW 9.94A.535.
13. This order does not affect the separate legal requirements for restoring a right to possess a firearm under RCW 9.41.040.
14. For all purposes, including responding to questions on employment applications, the defendant may state that they were never convicted of the offenses listed in section 9.
15. The clerk shall immediately transmit a copy of this order to Washington State Patrol and to *(local law enforcement agency)* _____ which agencies shall immediately update their records to reflect the vacation of the record of conviction of the offense(s) listed in section 9. The Washington State Patrol shall transmit a copy of this order to the Federal Bureau of Investigation. The Washington State Patrol or local law enforcement agency may not disseminate or disclose a conviction that has been vacated under RCW 9.94A.640 to any person, except to other criminal justice enforcement agencies.

Dated: _____

Judge

Prosecuting Attorney WSBA No.

Defendant/Defendant's Attorney WSBA No.

Print Name

Alexandrina-Katharine Montgomery-Vandenberg-Ovelaran

Print Name

Washington felony vacation packet

Where self-help ends

If any condition below describes your case, stop and take it to a lawyer, legal-aid office, or court facilitator rather than filing this packet.

- Any pending charge in Washington, another state, federal court, or tribal court.
- Any domestic violence element, charged or findable from the court file.
- Any protection, no-contact, antiharassment or civil restraining order currently in effect, or violated in the last five years.
- Any DUI, physical control, or alcohol or drug related driving offence, including a reduced charge.
- Any firearm, deadly weapon or sexual motivation enhancement.
- Any question about offence class or the exact RCW.
- Immigration consequences.
- Any participant whose real goal is firearm rights restoration, which is a separate proceeding under RCW 9.41.041.
- No certificate of discharge has been entered.
- The felony class or the exact RCW cannot be established from the judgment and sentence.
- The offence may be a crime against persons under RCW 43.43.830 even if it is not a violent offence under RCW 9.94A.030.
- Assault in the third degree where the victim may have been a law enforcement or peace officer.

A possible hearing is an ordinary step on this route; that fact alone is not a self-help stop. The packet does stop if the prosecuting attorney objects or the court record does not match the packet.

Route: obligation:track-pathway:WA:wa_vac_felony:adult-felony-vacation-under-rcw-9-94a-640